School Responsibilities & Information Duties

Regarding Regulatory Compliance (KLE, APVO M-V)

Internal Administrative Guide

Document Version: January 2026

IMPORTANT NOTICE

This document addresses the question of **who bears responsibility** when teachers are not properly informed about regulatory requirements, particularly regarding:

- KLE Sprechen (Complex Speaking Assessment)
- Teaching certification requirements (Lehrbefugnis)
- APVO M-V compliance in the qualification phase

1 Internal School Hierarchy of Responsibility

The following table outlines who is responsible for what within the school structure:

Level	Position	Responsibility
1. School Leadership	Principal (Schulleiter/in)	• Overall responsibility for APVO compliance • Personnel matters • Teaching certification verification • Final accountability
2. Upper Secondary	Coordinator (Oberstufenkoordinator)	• Operational Q-phase implementation • KLE organization and scheduling • Exam planning • Informing department heads
3. Department Level	Head of Languages (Fachkonferenzleitung)	• Subject-specific communication • Passing requirements to teachers • Coordinating within department
4. Teacher Level	Subject Teacher (Fachlehrkraft)	• Implementation of assigned tasks • **NOT** responsible for systemic issues • **NOT** liable for missing certification

1.1 Information Flow (Chain of Communication)

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School Leadership (Principal)
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|
+---> Upper Secondary Coordinator
|              |
|              +---> Head of Languages Department
|                              |
|                              +---> Spanish Teachers
|
+---> Direct: Personnel/certification matters
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Key Principle

Information about regulatory requirements must flow **downward** through official channels. Each level is responsible for ensuring the next level is properly informed.

2 Liability Analysis: Missed Information

2.1 The Core Question

What happens when a teacher claims they were unaware of a requirement because they did not read an internal document?

The answer depends on whether the school fulfilled its **duty to inform**.

2.2 Burden of Proof

The School Must Prove:

1. The document was **delivered** to the teacher
2. The teacher was **informed it was mandatory** reading
3. **Reasonable time** was given to read and understand it
4. The **importance** of the content was communicated

If the school cannot prove these points → The teacher is NOT liable.

3 Definition of Key Terms

3.1 "Officially Distributed" (Offiziell verteilt)

What Qualifies as Official Distribution

A document is considered **officially distributed** when **ALL** of the following conditions are met:

Requirement	Description
1. Active Delivery	The document was actively sent/given to the teacher, not merely "made available."
✓	Email sent directly to teacher's official school address
✓	Physical copy placed in teacher's mailbox
✓	Handed out during a meeting
×	Uploaded to shared folder without notification
×	Posted on bulletin board
×	"Available on the intranet"
2. Proof of Receipt	There is documentation that the teacher received it.
✓	Signed distribution list
✓	Email with read receipt confirmed
✓	Minutes of meeting noting attendance
×	Email sent without confirmation
×	Assumed to be in mailbox
3. Marked as Mandatory	The document was clearly labeled as required reading.
✓	Subject line: "MANDATORY: Please read by [date]"
✓	Cover page states "Required reading for all Q-phase teachers"
✓	Verbal instruction in meeting (documented in minutes)
×	"FYI" or "For your information"
×	No indication of importance
4. Reasonable Timeframe	Sufficient time was provided to read and act on the information.
✓	Document provided weeks/months before deadline
✓	Reminder sent before deadline
×	Document provided day before action required
×	No clear deadline communicated

3.2 "Bringschuld" vs. "Holschuld" (Duty to Deliver vs. Duty to Seek)

German Term	Meaning	Who Bears Risk
Bringschuld	Duty to deliver	**School** must actively push information to teachers
Holschuld	Duty to seek/fetch	**Teacher** must actively seek out information

Critical Regulatory Matters

For matters involving:

- Legal requirements (APVO M-V, KLE)
- Examination regulations
- Certification requirements
- Student rights and obligations

The school has a **Bringschuld** (duty to deliver). The school leadership must **actively ensure** that all affected teachers are informed. It is **not sufficient** to say "the information was available somewhere."

4 Liability Scenarios

Situation	Liability	Reasoning
Document placed in shared folder without notification	**School's fault**	Teacher had no way of knowing it existed
Email sent, no read confirmation requested	**Gray area**	School should have verified receipt
Email sent with read receipt confirmed	**Teacher should have read**	Proof of receipt exists
Signed distribution list exists	**Teacher liable**	Clear proof of receipt and acknowledgment
Mentioned in staff meeting (minutes exist, attendance documented)	**Teacher should know**	Documented verbal communication
"It's on the intranet somewhere"	**School's fault**	No active distribution, no notification
New teacher, no onboarding on regulations	**School's fault**	Duty to onboard new staff
Teacher absent during meeting, no follow-up	**School's fault**	Duty to inform absent staff separately
Annual reminder system in place, documented	**Teacher should know**	Systematic approach to information

5 The Teacher's Defense

Valid Defense Statement

A teacher can credibly defend themselves if they can truthfully state:

> *"I was never told this document existed. I was never informed that I needed to read it. I received no training or briefing on KLE requirements or the implications of my certification status for Q-phase teaching."*

If this statement is credible and the school cannot prove otherwise, **liability shifts entirely to school leadership**.

5.1 What Teachers Should Document (Self-Protection)

1. Keep records of all official communications received
2. Note dates of meetings attended and topics covered
3. Request written confirmation of unclear verbal instructions
4. Ask explicitly: "Is there anything I need to read regarding [topic]?"
5. Document when information was **not** provided

6 Recommendations for School Administration

6.1 Best Practices for Information Distribution

1. **Use a formal distribution system**
   - Signed acknowledgment forms for critical documents
   - Email with mandatory read receipts for digital distribution
   - Documented handover during meetings
2. **Create an annual compliance calendar**
   - Schedule regular reminders for recurring requirements (e.g., KLE deadlines)
   - Document all reminders sent
3. **Implement onboarding procedures**
   - Checklist for new teachers covering all regulatory requirements
   - Signed acknowledgment of onboarding completion
4. **Follow up with absent staff**
   - System to identify who missed critical meetings
   - Documented follow-up communication
5. **Maintain a central compliance register**
   - Record which teacher received which document and when
   - Proof of distribution for audit purposes

7 Summary: Who Is Responsible?

Responsibility	Belongs To
Ensuring APVO M-V compliance	School Leadership
Organizing KLE assessments	Upper Secondary Coordinator
Informing teachers of requirements	School Leadership + Coordinator
Verifying teaching certifications	School Leadership (Personnel)
Reading officially distributed documents	Teacher (if properly distributed)
Seeking out undistributed information	**NOT the teacher's duty**
Consequences of systemic failures	School Leadership

Final Note

A teacher without proper teaching certification (Lehrbefugnis) who was assigned to teach a Q-phase course bears NO personal liability for:

- The school's failure to conduct KLE assessments
- The mismatch between their qualifications and the assignment
- Regulatory non-compliance resulting from improper staffing

These are administrative decisions made **above the teacher's level** and remain the responsibility of school leadership.

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